

24STCV07402 24STCV07402

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-02

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Case Number: 24STCV07402 Hearing Date: July 2, 2026 Dept: 224

Ha Seoup Bang v. Zhao Yu Bo

TENTATIVE RULING

The Court dismisses the action without prejudice for failure to prosecute and obtain a default judgment within two years of filing pursuant to CCP 583.410; 583.420. The Court additionally dismisses the action on grounds that Plaintiff failed to file evidence or argument explaining why the statute of limitations did not run before filing the action. The court ordered documents filed in advance of today's OSC. Plaintiff has failed to file any documents since March 25, 2026. Accordingly, this action is dismissed without prejudice.

FACTS OF THE CASE:

On or about February 3, 2017, Plaintiff's predecessor in interest, 402 MARION LLC and Defendant ZHAO YU BO entered into a California Property Purchase Agreement and Joint Escrow Instructions in which Defendant confirmed and acknowledged that he would purchase the property located at 402 S Washington Marion IN 45953 ("Subject Property") from the Plaintiff. Defendant thereafter refused to close escrow. 402 Marron LLC assigned all of the limited liability company's powers and rights to Plaintiff HA SEOUP BANG. Plaintiff has been damaged in the amount of \$61,832.98, which is the amount currently held as deposit paid by the Buyer.

PROOF OF SERVICE/DEFAULT:

Default entered 9/16/24,

PRINCIPAL REQUESTED: \$ 61,832.98

COSTS: \$ 620.00

TOTAL: \$ 62,452.98

ANALYSIS:

The damages pled in the Complaint and and Request for Entry of Default are aligned.

Plaintiff requests costs in the amount of \$620.00 as enumerated in Plaintiff's Memorandum of Costs.

Plaintiff has submitted all the requisite forms. Proposed form of judgment is provided (JUD100).

Additionally, Plaintiff has submitted an 585 Declaration. (Bang Decl.)

Violations of prior court ordered deadlines

The OSC was previously continued for Plaintiff to correct the following deficiencies identified in the last minute order:

1) In reviewing the default judgment package, the Court notes a number of remaining deficiencies. The Court recently continued the default judgment hearing on the grounds that there was no documentary evidence proving up the amount of the deposit actually paid, \$61,832.98 (i.e. copies of checks or statements showing the deposit paid by Defendant). Plaintiff has since provided a copy of an "Addendum to Commercial Property Purchase."

2) However, the original agreement is not attached, and no custodian of records or competent witness authenticates this document. Moreover, no witness testifies about when the Addendum was signed as it is dated April 24, 2017. There is also no evidence establishing what entity is holding the funds in escrow, or an account showing where the deposited funds are being held. This raises questions for the court about the statute of limitations, and fails to establish the transactional history including copies of checks, and proofs of deposits of the deposit funds.

3) The court orders the Plaintiff to submit a legal brief addressing why the statute of limitations has not run, and to submit admissible and competent evidence of the alleged transactions.

4) Further, the court is not convinced that Defendant has been properly served. The declaration of due diligence seems to indicate that the address 402 S Washington Marion IN 45953 where Defendant was served is residential because it describes making contact with a "resident and they stated subject there but not available at this time." (Declaration of Due Diligence, 6/11/24.) This conflicts with the representation by the process server that substitute service was effectuated on "Matt Chen, 50s, male, 5'8, co-worker." Moreover, the address of service is the address of the property at issue. Plaintiff disputes that Defendant properly completed the purchase the subject property. There is no indication that Defendant is actually in possession of, and lives at the property. If the address is a business, Plaintiff also needs to establish why service on a co-worker at this address.

No revised default judgment package has been submitted since the March 25, 2026 OSC.

CONCLUSION

The Court dismisses the action without prejudice for failure to prosecute and obtain a default judgment within two years of filing pursuant to CCP 583.410; 583.420. The Court additionally dismisses the action on grounds that Plaintiff failed to file evidence or argument explaining why the statute of limitations did not run before filing the action. The court ordered documents filed in advance of today's OSC. Plaintiff has failed to file any documents since March 25, 2026. Accordingly, this action is dismissed WITHOUT PREJUDICE.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the

tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.